

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 4, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.
Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 5	25CV460436	Fang Xia v. Park Townsend Homeowners Association	Click LINE 5 or scroll down for ruling.
Line 6	25CV460436	Fang Xia v. Park Townsend Homeowners Association	Click LINE 5 or scroll down for ruling.
Line 7	25CV467350	Martin Willerford v. Ford Motor Company et al.	Click LINE 7 or scroll down for ruling.

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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	24CV433661	LVNV Funding, LLC v. Mein Nguyen	Claim of exemption by judgment debtor Mein Nguyen related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is DENIED IN PART and GRANTED IN PART. Judgment debtor's financial statement shows sufficient non-exempt funds to withhold the judgment debtor's proposed withholding of \$164.35 per month. Judgment creditor to submit proposed order.

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Calendar Lines 1 and 2

Case Name: Brandon Giraldo v. Phuc Nguyen et al.

Case No.: 24CV436319

Demurrer to, and motion to strike, portions of plaintiff Brandon Giraldo's first amended complaint (FAC), filed by defendants Tuan Quoc Nguyen and Lexington Enterprises Group, Inc. Notice is proper and no timely opposition was filed. Plaintiff filed a request for a continuance on June 1, 2026, arguing that the failure to file an opposition was due to plaintiff's transition to self-represented status after his attorney substituted out of the case. The court denies the request for a continuance, but will review the demurrer and motion to strike on the merits.

The case involves a dispute over construction at plaintiff's residence. The FAC names as defendants T&T Construction (T&T); Phuc Huu Nguyen (referred to in the FAC and in this order as Andy); Tuan Quoc Nguyen (Tuan); Lexington Enterprises Group, Inc. (Lexington); and Doe defendants. The FAC alleges that Tuan was plaintiff's real estate agent when he bought the residence in June 2023. (FAC, ¶ 11.) Lexington was Tuan's "responsible broker," and has a real estate broker's license. (FAC, ¶¶ 8-9.) Tuan introduced plaintiff to Andy, who is the principal of T&T. (FAC, ¶ 13.) Plaintiff and T&T signed a construction contract in July 2023 to remodel the residence. (FAC, ¶ 13.) The FAC alleges Tuan "acted as project coordinator/redevelopment consultant for [plaintiff] and Andy." (*Id.*, ¶ 14.) It also alleges "Tuan and Andy persuaded [plaintiff] that the Work could and should be accomplished without any permits." (*Id.*, ¶ 15.) T&T engaged in construction work between July 2023 and November 2023. Plaintiff paid T&T over \$156,000. (*Id.*, ¶ 17.) Plaintiff discovered that T&T was performing work without required permits, and that T&T's contractor's license had been suspended. (*Id.*, ¶ 19.) The FAC elsewhere alleges that T&T's contractor's license was suspended between August and December 2023. (*Id.*, ¶ 3.) Plaintiff eventually terminated T&T and instructed Tuan not to return to the residence. (*Id.*, ¶ 19.)

The FAC alleges five causes of action: (1) fraud (against T&T, Andy, and Tuan); (2) breach of contract (against T&T and Andy); (3) disgorgement (against T&T and Andy); (4) negligence (against T&T and Andy); (5) negligence (against Tuan and Lexington); and (6) negligence (against Lexington).

DEMURRER

Tuan and Lexington demur to the first, fifth, and sixth causes of action. They contend those causes of action fail to state facts sufficient to state causes of action against them. (Code Civ. Proc., § 430.10, subd. (e); unspecified statutory references are to this Code.) In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations. The court does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.)

First Cause of Action – Fraud (Against Tuan)

"The elements of fraud are (1) the defendant made a false representation as to a past or existing material fact; (2) the defendant knew the representation was false at the time it was made; (3) in making the representation, the defendant intended to deceive the plaintiff; (4) the plaintiff justifiably relied on the representation; and (5) the plaintiff suffered resulting